

papers sufficiently demonstrate that Defendant has failed to respond to Request for Admissions, Set One within the required time frame. Unlike a motion to compel *further* responses, a motion to compel responses when no responses have been provided does not require the propounding party to demonstrate good cause or that it satisfied a meet-and-confer requirement. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal. App. 4th 390. Despite not being required to meet and confer, Plaintiff sent Defendant a meet and confer letter on June 5, 2026.

Monetary sanctions are mandatory per CCP § 2033.280(c), however, Plaintiff did not seek monetary sanctions and provided no evidence regarding attorney’s fees or other costs associated with bringing the motion. Sanctions should only be imposed for “reasonable” expenses. CCP § 2033.030. The Court does not have information upon which to make a finding that any amount of sanctions was for reasonable expenses and will not impose sanctions.

The motion is **GRANTED**. Defendant is deemed to have admitted as true each of the items contained in Plaintiff’s Request for Admissions, Set One. Objections are waived. Plaintiff provided a proposed Order that will be executed by the Court. The trial date of October 6, 2026 is confirmed.

9:00 a.m. – Review Hearings

ABREU VS. SIMMONS

CASE NUMBER: 25CV-0208617

This matter is on calendar for review regarding status of the case.. The matter is at issue and trial is scheduled for August 4, 2026. Jury fees have not been posted by either party. Therefore, the matter will proceed as a court trial. The Court notes that Plaintiff has not submitted a Request for Remote Appearance for the trial. Given Plaintiff’s status as an incarcerated litigant, on July 23, 2026, the Court issued an Order Regarding Remote Appearance and has ordered that CDCR produce Plaintiff for a remote appearance via WebEx. **An appearance by all parties is necessary on today’s calendar to confirm the trial and provide a time estimate.**

AMYOT VS. SILVERTHORN RESORT, INC.,

CASE NUMBER: 23CV-0203487

This matter is on calendar for a compliance hearing following final approval of a class action settlement. The Declaration of Garvin Brown provides that all payments have been made and that the amount of the uncashed settlement checks will be sent to the California State Controller’s Office on August 5, 2026. The matter is continued to **Monday, September 28, 2026 at 9:00 a.m. in Department 63** for confirmation. No less than five court days prior to the hearing, Plaintiff shall provide evidence that the transfer to the State Controller’s Office occurred. **No appearance is necessary on today’s calendar.**

BELCHER VS. SHASTA COMMUNITY HEALTH CENTER

CASE NUMBER: 25CV-0208268

This matter is on calendar for a trial setting conference. The Court designates this matter as a Plan II case and intends on setting the matter for trial no later than February 17, 2027. Neither side has posted jury fees. The parties are granted 10 days leave to post jury fees. A failure to post jury fees in that time will be deemed a waiver of the right to a jury. The parties are ordered to meet and confer prior to the hearing regarding proposed dates for trial. **An appearance is necessary on today’s calendar.**

BERG, ET AL. VS. U.S. BANK, ET AL.

CASE NUMBER: 24CV-0206475

This matter is on calendar for review regarding status of settlement or arbitration. Both parties filed status statements. The Court notes that Defendant moved to compel arbitration and that the matter was stayed pending arbitration on June 23, 2025, however, it appears that nothing has been done to actually arbitrate the matter. The